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BEFORE THE IOWA
BOARD OF PSYCHOLOGY EXAMINERS

IN THE MATTER OF	)	
THE LICENSE TO PRACTICE AS	)	DIA No. 91DPHPS-1
A PSYCHOLOGIST OF:	)	
	)	INFORMAL SETTLEMENT
BARBARA SULLIVAN WOODWARD,	)	
Lic. No. 498, Respondent.	)	

COMES NOW the Iowa Board of Psychology Examiners (the "Board") and Barbara Sullivan Woodward ("Respondent") and, pursuant to Iowa Code Sections 17A.10 and 258A.3(4), enter into the following Informal Settlement of the contested case currently on file:

1. Respondent was originally licensed to practice as a psychologist in the state of Iowa on September 24, 1985, and holds license number 498. Respondent's license is current until June 30, 1992.

2. A Complaint and Statement of Charges was filed against the Respondent on April 25, 1991.

3. The Board has jurisdiction of the parties and the subject matter.

4. Respondent acknowledges a violation of rule 240.212(14)(a)(5) (as alleged in paragraph 7(c)(1) in the Statement of Charges) insofar as the custody of the patient's financial instruments presented an appearance and potential for undue influence. However, the Board notes that the violation in this case was an inadvertent violation, as the patient herself requested the Respondent to take custody of the materials. Respondent's acquiescence to the request may have been an error in judgment, and there is no evidence that damage in fact occurred to the patient.

5. The remaining charges in the Statement of Charges, specifically paragraph 7, subparagraphs (a) and (b), and subparagraphs (c)(2) and (c)(3), are hereby dismissed.

6. This Informal Settlement is subject to approval of the Board. If the Board fails to approve this Informal Settlement, it shall be of no force or effect to either party.

7. This Informal Settlement is voluntarily submitted by the Respondent to the Board for its consideration.

Barbara Sullivan Woodward
Barbara Sullivan Woodward, Ph.D.
Respondent

Signed and sworn to before me this 23rd day of January, 1992.

Robert M. Bertsch
Notary Public in and for the
State of Iowa

My Commission Expires: 9-14-92

Approved as to form:

Robert M. Bertsch
Robert M. Bertsch
O'Connor & Thomas, P.C.
200 CyCare Plaza
Dubuque, IA 52001

ATTORNEY FOR RESPONDENT

Lynette A. F. Donner
Lynette A. F. Donner
Assistant Attorney General
Second Fl., Hoover Building
Des Moines, IA 50319

ATTORNEY FOR THE PUBLIC INTEREST

8. This Informal Settlement is accepted by the Iowa Board of Psychology Examiners on this 24th day of January, 1992.

Carl Davis, Ph.D.
Carl Davis, Ph.D., Its Chairman
Iowa Board of Psychology Examiners

Signed and sworn to before me this 24th day of January, 1992.

Stephen M. Williams
Notary Public in and for the
State of Iowa

My Commission Expires:

6-9-93

BEFORE THE IOWA
BOARD OF PSYCHOLOGY EXAMINERS

IN THE MATTER OF	)	
THE LICENSE TO PRACTICE AS	)	DIA NO. 91DPHPS-1
A PSYCHOLOGIST OF:	)	
	)	NOTICE OF HEARING AND
BARBARA SULLIVAN WOODWARD,	)	STATEMENT OF CHARGES
Lic. No. 498, Respondent.	)	
	)	

TO THE ABOVE-NAMED RESPONDENT:

Pursuant to Iowa Code 17A.12 and 645 Iowa Administrative Code 240.206, and upon a probable cause determination by the Iowa Board of Psychology Examiners (the Board), you are hereby notified that a Statement of Charges has been filed and that a disciplinary hearing regarding those charges has been scheduled at 9:00 a.m., July 26, 1991, in the 4th Floor Conference Room, Side 1 of the Lucas State Office Building, Des Moines, Iowa. At that time you may appear and defend. If you fail to appear and defend, Iowa Code 17A.12(3) provides that the hearing may proceed and a decision rendered. You have the right to be represented by legal counsel at your own expense, present evidence on your behalf, and to examine and cross-examine witnesses. The authority for the hearing is Iowa Code 258A.3 and 258A.6 and Board rules 240.201 through 240.212.

The hearing will concern whether or not disciplinary action should be taken concerning your license to practice as a psychologist based upon the following allegations:

1. Respondent was originally licensed to practice as a psychologist in the state of Iowa on September 24, 1985, and holds license number 498.

2. Respondent's license is current until June 30, 1992.

3. Respondent's current address as reported to the Board is 300 North Grandview, Dubuque, Iowa 52001.

4. Beginning in 1988, Respondent undertook the care and treatment of a patient, M.C. During the course of treatment, Respondent maintained custody of the patient's credit cards, check books, and other financial instruments. The patient requested Respondent for funds prior to purchases.

5. The financial control allegedly exerted by Respondent over the patient is unethical conduct and is potentially harmful or detrimental to the public.

6. Iowa Code 147.55(3) and 258A.10(3) provide the Board with jurisdiction to take disciplinary action against a licensee for "engaging in unethical conduct or practice harmful or detrimental to the public. Proof of actual injury need not be established."

7. 645 Iowa Admin. Code 240.212(14) provides further jurisdiction to the Board to take disciplinary action for enumerated reasons, including:

a. 645 Iowa Admin Code 240.212(1)(c). "[E]ngaging in unethical conduct or practice harmful or detrimental to the public. Proof of actual injury need not be established."

b. 645 Iowa Admin Code 240.212(6). "[A]ny conduct, practice or conditions which impair the ability to safely and skillfully practice the profession."

c. 645 Iowa Admin Code 240.212(14). "Failure to comply with the . . . rules of ethical conduct and practice." Those rules provide in part:

(1) 645 Iowa Admin Code 240.212(14)(a)(5). "As practitioners, psychologists know that they bear a heavy social responsibility because their recommendations and professional actions may alter the lives of others. They are alert to personal, social, organizational, financial, or political situations or pressures that might lead to misuse of their influence."

(2) 645 Iowa Admin Code 240.212(14)(f)(1).
"Psychologists are continually cognizant of their own needs and of their inherently powerful position vis a vis clients, in order to avoid exploiting their trust and dependency. Psychologists make every effort to avoid dual relationships with clients or relationships which might impair their professional judgment or increase the risk of client exploitation . . ."

(3) 645 Iowa Admin. Code 240.(14)(f)(4). "Financial arrangements in professional practice are in accord with professional standards that safeguard the best interests of the client and that are clearly understood by the client in advance of billing . . ."

You are also hereby notified that the hearing will be presided over by the Board which will be assisted by an administrative law judge from the Iowa Department of Inspections and Appeals.

Further, you are also hereby notified that the office of the Attorney General is responsible for representation of the public interest in these proceedings. Copies of all filings with the Board should be served on counsel at the following address: Lynette A. F. Donner, Assistant Attorney General, Hoover State Office Building, Des Moines, Iowa 50319. Ms. Donner's telephone number is: 515/281-8760.

Dated this 25th day of April, 1991.

A handwritten signature in cursive script, appearing to read "Carl Davis", written over a horizontal line.

Carl Davis, Ph.D.
Chairperson
Iowa Board of Psychology Examiners